There was ample opportunity for respondents to assert their claims through an orderly proceeding in courts of the state empowered authoritatively to interpret her laws with final review here in respect of federal questions.

MR. JUSTICE BUTLER, dissenting:

I am of opinion that the challenged ordinance is not void on its face; that in principle it does not differ from the Boston ordinance, as applied and upheld by this Court, speaking through Mr. Justice White, in *Davis* v. *Massachusetts,* 167 U. S. 43, affirming the Supreme Judicial Court of Massachusetts, speaking through Mr. Justice Holmes, in *Commonwealth* v. *Davis,* 162 Mass. 510; 39 N. E. 113, and that the decree of the Circuit Court of Appeals should be reversed.

UNITED STATES *v.* ROCK ROYAL CO-OPERATIVE, INC. ET AL.*

APPEAL FROM THE DISTRICT COURT OF THE UNITED STATES FOR THE NORTHERN DISTRICT OF NEW YORK.

No. 771. Argued April 24, 25, 1939.—Decided June 5, 1939.

Under the Agricultural Marketing Agreement Act of 1937, the Secretary of Agriculture, after notice and hearings, made an order for fixing and equalizing minimum prices to be paid producers for milk sold to dealers ("handlers") and disposed of by the latter either in liquid form or as milk products within a "marketing area" comprising the City of New York and adjacent counties.

*Together with No. 826, *Noyes, Commissioner of Agriculture and Markets of the State of New York,* v. *Rock Royal Co-operative, Inc. et al.;* No. 827, *Dairymen's League Cooperative Assn., Inc.* v. *Rock Royal Co-operative, Inc. et al.;* and No. 828, *Metropolitan Co-operative Milk Producers Bargaining Agency, Inc.* v. *Rock Royal Co-operative, Inc. et al.,* also on appeals from the District Court of the United States for the Northern District of New York.